



Strategic Assessment
SECURE & NOTIFY
DEATH TO FILING

Petition & Authority
OBTAINING POWERS
AFTER PETITION FILED

Asset Discovery
INVENTORY & APPRAISAL
AFTER LETTERS ISSUED

Creditor Claims
NOTICE & PRIORITY
AFTER LETTERS ISSUED

Asset Liquidation
TRANSFER & SELL
MONTH 6–12

Strategic Assessment
Secure & Notify • Death to Filing

Petition & Authority
Obtaining Powers • After Petition Filed

Asset Discovery
Inventory & Appraisal • After Letters Issued

Creditor Claims
Notice & Priority • After Letters Issued

Asset Liquidation
Transfer & Sell • Month 6–12

Final Distribution
Estate In Closing • Month 6–12



Strategic Assessment CURRENT

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Secure the Property NEXT STEP
Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

Initial Property Protection
Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

Notify Social Security Administration
Report the death to stop benefit payments and prevent overpayment recovery.

Upload Death Certificate

Report Death to SSA

Cancel Credit Cards & Subscriptions
Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

Manage Utilities
Review decedent's utility accounts (electricity, water, gas).

Conduct Genealogical Search OPTIONAL

☐ If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.

☐ **Locate Important Documents (Intestate)** OPTIONAL

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

Upload Documents

☐ **Establish Estate Financial Account**

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

 Upload Death Certificate

 Upload Letters of Authority

 Upload EIN

☐ **Managed Payment of Immediate Bills**

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills

☐ **Confirm U.S. Legal Representative**

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

☐ **Verify Notarization Rules (Apostille)**

Check if your current country of residence is a member of the Hague Apostille Convention. This determines how documents signed abroad must be authenticated for U.S. court

 Check HCCH Member States

 **UPLOAD MISCELLANEOUS**

☐ **Court Compliance & Eligibility**

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☐ **Validate Venue and Jurisdiction**

Confirm the decedent's legal domicile and county residency to ensure the petition is filed in the legally appropriate court.

☐ **Screen Fiduciary Eligibility**

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.

☐ **Validate Interested Parties**

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.

☐ **Prepare Required Notices and Waivers**

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.

☐ **Evaluate Need for Temporary Authority**

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.

☐ **Calculate Court Filing Fees**

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

☐ **Compile Required Court Form Packet**

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.

 **UPLOAD MISCELLANEOUS**

Petition & Authority

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☐ **Mail Notice to Known Creditors (As Applicable)** LOCKED
Notify known creditors as appropriate and retain proof of mailing/notice. Requirements can vary by county and case posture; confirm local practice.

☐ **Attend Probate Hearing** LOCKED
Appear in court for the probate hearing (usually 60-90 days after filing).

☐ **Establish Fiduciary Authority (Letters)** LOCKED
Obtain certified copies of the Letters—this document is your legal evidence of authority to manage estate assets.

☐ **Attend Administration Hearing** LOCKED
Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.

☐ **Obtain Letters of Administration** LOCKED
Once the court approves the petition, obtain certified copies of your Letters of Administration.

☐ **File Small Estate Affidavit**
For estates under threshold, use this shortcut to bypass court probate.

 Upload Affidavit Form

 Upload Death Certificate

☐ **File Spousal Property Petition**
Request court order to transfer property to surviving spouse without full probate.

 Upload Petition Form

 Upload Death Certificate

Start Spousal Path

☐ **Give Notice of Hearing** OPTIONAL LOCKED
Notify all interested parties about the court hearing date for the petition.

☐ **Obtain Spousal Property Order** OPTIONAL LOCKED
Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

☐ **Issue Certificate of Trust** OPTIONAL
Formalize successor trustee authority for trust-held assets.

 Upload Trust Agreement

☐ **Obtain Business Operating Authority**
If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ **Avoid Bond Cost** LOCKED

Obtain signatures from all heirs to waive the bond requirement, then file the completed waiver with the court.

 **UPLOAD MISCELLANEOUS**

☐ **Asset Discovery**

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 Letters of Administration required
Upload Documents →

☐ **Creditor Claims**

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☐ **Mail Notice to Known Creditors (As Applicable)** LOCKED

Notify known creditors as appropriate and retain proof of mailing/notice. Requirements can vary by county and case posture; confirm local practice.

☐ **Evaluate Estate Solvency**

Compare total assets to total liabilities and funeral/admin expenses.

☐ **Wait for 4-Month Claim Period** LOCKED

Creditors have 4 months from publication of the creditor notice to file claims against the estate.

☐ **Review Submitted Claims**

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ **File Formal Rejection of Claim (CA)**

If a claim is invalid or unsupported, follow California's procedure to reject the claim and retain proof of delivery. Confirm any statutory deadlines and required notice language.

 Upload Notice of Rejection (as required)

 Upload Proof of service/mailling

☐ **Pay Approved Claims** LOCKED

Pay valid debts in order of priority (funeral, taxes, secured debts, then unsecured).

☐ **File Proof of Creditor Notice (CA)** LOCKED

Retain and submit proof of publication and any required mailed notices per local court practice. Confirm county-specific proof requirements.

 **UPLOAD MISCELLANEOUS**

☐ **Asset Liquidation**

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☐ **Obtain Court Approval for Minor Distributions**

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ **Present Letters to All Institutions**
Submit certified Letters of Authority to every bank, brokerage, and insurance company.

-  Upload Letters of Authority
-  Upload Death Certificate

☐ **Transfer Financial Accounts** LOCKED
Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ **Prepare Notice of Proposed Action**
If you have independent administration authority, you must notify heirs of your intent to sell real property.

-  Upload Notice of Proposed Action Form
-  About Notices of Proposed Action
- Authorization

☐ **Wait for 15-Day Objection Period** LOCKED
Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

☐ **File Petition to Confirm Sale**
If you do NOT have independent administration authority, or if someone objects, you must petition the court to confirm the sale of real property.

-  Upload Petition to Confirm Sale Form
-  About Sales Confirmation
- File Petition

☐ **Obtain Sale Confirmation Order** LOCKED
Receive signed court order confirming the real estate sale and allowing the close of escrow.

☐ **Complete Property Sale & Close Escrow** LOCKED
Finalize the sale of real estate through IAEA or court-confirmed process, sign closing documents, and receive sale proceeds into the estate account.

☐ **Issue Schedule K-1 to Beneficiaries**
Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ **Pay Final Taxes** Check Deadline
File final individual 1040, estate 1041, and any estate tax returns.

-  Upload All Tax Documents

☐ **Prepare Final Accounting** LOCKED
Document all income, expenses, and distributions for court review.

 **UPLOAD MISCELLANEOUS**

☐ **Final Distribution**

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☐ **Setup Blocked Accounts for Minors** OPTIONAL
Ensure funds for minor beneficiaries are placed in court-approved blocked accounts.

☐ **File Petition for Final Distribution** LOCKED
Request court approval to distribute remaining assets to heirs.

Attend Final Hearing

LOCKED

Appear in court for approval of final accounting and distribution.

Distribute Assets to Heirs

LOCKED

Transfer remaining assets according to Will and court order.

File Final Accounting with Court

LOCKED

Submit final report showing all transactions and distributions.

Prepare International Distribution

LOCKED

Collect exact beneficiary bank details, Swift codes, and pre-validate wire requirements.

Close Estate

LOCKED

File final discharge and close estate bank account.

UPLOAD MISCELLANEOUS

ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.

Action Plan

YOUR COMPLETE 6-PHASE GUIDE

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